



ZIMBABWE ANTI-CORRUPTION COMMISSION

“Refuse, Resist and Report Corruption”

Harare

Zimbabwe

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1. BACKGROUND

This submission is made by the Zimbabwe Anti-Corruption Commission (ZACC) as a stakeholder in the promotion of human rights through the investigation and prevention of corruption.

The ZACC is established by as an independent institution under Section 255(1) (b) of the Constitution of Zimbabwe and is mandated to combat corruption, theft, misappropriation, abuse of power and other improper conduct in the public and private sectors. This mandate is further enunciated by Section 12 (b) and (c) of the Anti-Corruption Commission Act [Chapter 9:22]. The constitution requires ZACC as a Chapter 13 Institution to be impartial and to exercise its powers and perform its functions without fear, favour or prejudice.

The functions of ZACC are as follows:

- ◆ To investigate and expose cases of corruption in the public and private sectors,
- ◆ To combat corruption, theft, misappropriation, abuse of power, and other improper conduct in the public and private sectors,
- ◆ To promote honesty, financial discipline and transparency in the public and private sectors,
- ◆ To receive and consider complaints from the public and to take such action in regard to the complaints as it considers appropriate
- ◆ To direct Commissioner General of Police to investigate cases of suspected corruption and to report to the Commission on the results of the investigations
- ◆ To refer matters to the National Prosecution Authority for prosecution
- ◆ To require assistance form members of the Police Service and other investigative agencies of the State, and,

- ◆ To make recommendations to the Government and other persons on measures to enhance integrity, accountability and prevent improper conduct in the public and private sectors.

ZACC discharges its functions by conducting investigations for prosecution and asset recovery; and promoting the prevention of corruption.

2nd cycle UPR Recommendation: 131.141: Continue to strengthen efforts to fight corruption (United Republic of Tanzania); A/HRC/34/8 - Para. 131

2. SITUATIONAL ASSESSMENT OF CORRUPTION IN ZIMBABWE

Zimbabwe aspires to have attained the status of a prosperous and empowered upper middle income economy by 2030. This status is anchored on a number of values and objectives which includes an aggressive fight against all forms of Corruption. It is estimated that Zimbabwe is losing between US\$1.7 billion and US\$1.9 billion through illicit dealings, including corruption. This explains why the National Development Strategy (NDS1) (see Endnote 1) and Vision 2030 have prioritised the fight against corruption. In 2019 the country recorded 158/180 on the Transparency International Perception Index. With the ushering in of the second republic, Zimbabwe has embarked on reform initiatives aimed at fighting corruption. The President of the Republic of Zimbabwe His Excellency Emmerson Dambudzo Mnangagwa has pronounced a “Zero Tolerance” to all forms of corruption policy which emphasizes the need to deal with corruption decisively.

As a result, Government has developed policies, plans of actions and programmes to boost the fight against corruption in Zimbabwe which include a robust asset recovery initiative. Zimbabwe has an elaborate institutional infrastructure to combat corruption, and has taken steps to strengthen its public finance management systems and enacted the 2018 Public Entities Corporate Governance Act to monitor activities and performance of public entities. In 2020, the Government launched a 5-year National Anti-Corruption Strategy (NACS) and established a Steering Committee to coordinate efforts to combat corruption. Corruption though is still widespread. Public entities such as National Social Security Authority (NSSA), Zimbabwe Revenue Authority, Ministry of Health and Child Welfare, Zimbabwe Power Company, Zimbabwe National Road Administration (ZINARA) and Zimbabwe Manpower Development Fund (ZIMDEF) have been implicated in allegations of graft. The Office of the Auditor General (OAG) has reported massive abuse of public funds but few implicated senior officials have been prosecuted.

ZACC has the constitutional mandate to prevent corruption and investigate corruption and various economic crime cases. The work of ZACC on investigations has already seen two cabinet ministers appearing before the courts for criminal

abuse of duty as public Officers leading to them being relieved of their duties. Currently, a former minister and a senior government official are serving jail terms for criminal abuse of office. ZACC faces delays in prosecution of cases brought before the courts. This is because ZACC does not have prosecution powers and this constrains its ability to conclude cases timeously. This then has tended to affect public perception as ZACC is not seen to be effective in concluding cases. Currently ZACC has offices in Harare, Bulawayo and Gweru. There are plans to decentralise to other provinces before the end of 2021 thereby taking ZACC to the people. Most of the experienced investigators have been seconded by the Zimbabwe Republic Police. ZACC relies on them to capacitate the young investigators that have been employed to boost the investigation portfolio.

2. Preventive Measures

2.1 Establishment of an Anti-Corruption Agency

- Zimbabwe has complied with article 6 of United Nations Convention Against Corruption (UNCAC) by establishing the Zimbabwe Anti-Corruption Commission through section 254 of the Constitution of Zimbabwe Amendment no. 20 Act 2013 and the Anti-Corruption Commission Act (Chap 9:22).

2.2 Establishment of Special Anti-Corruption Courts and the Special Anti-Corruption Unit

- Zimbabwe has established Specialized Courts for the handling of corruption and economic crime cases. Specific Magistrates were selected to run these courts and to date each province has a dedicated anti-corruption court. The Magistrates have undergone specialized training on how to handle corruption and economic crime cases.
- Zimbabwe has also established a Special Anti-Corruption Unit (SACU) which is housed in the Office of the President and Cabinet and works closely with ZACC and the National Prosecuting Authority (NPA). The mandate of the Special Anti-Corruption Unit is to prosecute corruption cases.
- The Zimbabwe Republic Police also has an anti-corruption unit (Police Anti-Corruption Unit (PACU) which closely works with ZACC.

2.3 National Anti-Corruption Strategy

- A National Anti- Corruption Strategy (2020-2024) was launched in July 2020 which outlines how Zimbabwe intends to fight corruption over the 5 year period (on details see End Note 2).

2.4 Legal Framework

- Zimbabwe has made significant progress in addressing corruption through the adoption of a comprehensive legal framework to combat corruption consistent with the UNCAC.
- The Legal Framework includes the Constitution of Zimbabwe amendment No. 20 ACT 2013, the Anti- Corruption Commission Act (Chap. 9:22), the Criminal Law Codification and Reform Act (Chap. 9:23), the Criminal Procedure and Evidence Act (Chap. 9:07), the Prevention of Corruption Act (Chap. 9:16), the Public Entities Corporate Governance Act (Chap. 10:31), the Public Procurement and Disposal of Public Assets Act (Chap 22:23), the Money Laundering and Proceeds of Crime Act (chap. 9:24) and SI 143 of 2019 which designates ZACC Officers as Peace Officers thereby giving them arresting powers.

2.5 Criminalisation of Corruption

- Sections 170 to 174 of the Criminal Law (Codification and Reform Act) criminalise corruption and defines corruption as constituting the following:
 - Section 170: Bribery
 - Section 171: Corruptly using a false document
 - Section 172: Corruptly concealing a transaction from a principal
 - Section 173: Corruptly concealing from a principal a personal interest in a transaction
 - Section 174: Criminal abuse of duty as a public officer

2.6 Whistle-Blower Legislation

- UNCAC obliges state parties to protect witnesses and reporting persons through enactment of appropriate legislation. An effective reporting mechanism of corruption is heavily dependent upon the existence of a whistle blower and witness protection Act.
- The Zimbabwean Government therefore acknowledges the importance of the enactment of a Whistle-Blower and Witness Protection Act and is in the process of drafting these two legislations. In the meantime the ZACC has developed a whistle-blower application that can be assessed online: www.zacc.online/tipoffs to allow for anonymous reporting. The whistle-blower application is also user-friendly to encourage more reporting.

2.7 Public Procurement and Management of Public Finances

- In line with article 9 of the UNCAC, Zimbabwe established the Procurement Regulatory Authority of Zimbabwe which is mandated to oversee procurement in the public sector and the disposal of the public assets.
- The Procurement Regulatory Authority of Zimbabwe is mandated to ensure that all public entities follow the prescribed tender procedures outlined in the Public Procurement and Disposal of Public Assets Act (Chap. 22:23).
- The Government of Zimbabwe also established the Corporate Governance Unit which is housed under the Office of the President and Cabinet to ensure all public entities adhere to good corporate governance practices.
- Several arrests have been made on Public officials who fail to adhere to the principles and procedures of procurement as outlined in the Public Procurement and Disposal of Public Assets Act (matters before the courts such as: State vs Prisca Mupfumira; State vs Obadiah Moyo; State v Wicknel Chivayo and many others).

2.8 Measures to Prevent Money Laundering

In addition to enacting legislation that inhibits money laundering (Money Laundering and Proceeds of Crime Amendment Act Chap. 9:24), the Government has established the Financial Intelligence Unit (FIU) which is mandated to oversee transactions in financial institutions as a means of countering money laundering and countering the financing of terrorism. The establishment of the Financial Intelligence Unit is in line with Article 14 of UNCAC that calls for the establishment of measures to prevent money laundering.

2.9 Cooperation among Local Agencies

- The ZACC is in the process of establishing synergies with various key stakeholders in the fight against corruption. In this regard, several Memoranda of Understanding to enable collaborations in the fights against corruption between ZACC and the Zimbabwe Revenue Authority (ZIMRA), Office of the Auditor General, National Prosecuting Authority (NPA), Zimbabwe Republic Police (ZRP), Financial Intelligence Unit (FIU), Public Service Commission (PSC), Transparency International Zimbabwe (TIZ), Compliance Society of Zimbabwe, Standards Association of Zimbabwe, Immigration Department, African Parliamentarians Network Against Corruption (Zimbabwe Chapter), Global Forensics Zimbabwe and Association of Certified Fraud Examiners (Zimbabwe Chapter) among others.

2.10 Compliance and Systems Spot Checks

- The ZACC is mandated to conduct compliance and systems review checks to ensure good corporate governance principles prevail in both the public and private sector. This in accordance with article 5 of the UNCAC which calls for preventive anti-corruption policies and practices.
- To date, compliance and systems review checks have been conducted in Government Aided Projects such as the Presidential Scholarships, Command Agriculture, NatPharm, Cyclone Idai Donations, ZIMSEC, Central Hospitals, National Blood Services, Local Authorities and the Procurement of COVID 19 essentials among others.

2.11 Cooperation of Government and the Private Sector

- Government has put in place interactive platforms for the Government and private sector to fight corruption and financial indiscipline in the private sector. In turn, ZACC has signed MoUs with some private sector organizations such as the Institute of Chartered Secretaries and Administrators in Zimbabwe and the Institute of Directors Zimbabwe on cooperation in preventing and combating corruption. ZACC is also in the process of establishing MoUs with private sector representative bodies such as the Zimbabwe National Chamber of Commerce and the Confederation of Zimbabwe Industries.

2.12 Regional cooperation efforts

ZACC and the Directorate on Corruption and Economic Crime of Botswana

- The MoU will strengthen cooperation between the two anti-corruption agencies through cooperation in issues of extradition, mutual legal assistance, joint investigations, sharing of information and asset recovery among others.

ZACC and the Zambia Anti –Corruption Commission

- The MoU strengthens cooperation between the two anti-corruption agencies through cooperation in issues of extradition, mutual legal assistance, joint investigations, sharing of information and asset recovery among others.

3.1.3 International Cooperation: Consultancy Agreement between the Zimbabwe Anti-Corruption Commission and the International Centre for Asset Recovery

- The consultancy agreement seeks to boost asset recovery in Zimbabwe through expert assistance from the International Centre for Asset recovery.
- The Consultancy agreement also has provisions for training to the Zimbabwe Anti-Corruption Commission on financial investigations.

2.12 Participation in Reviews

- Zimbabwe has continuously evaluated her progress in fighting corruption since the ratification and adoption of UNCAC through participating in the review mechanisms provided for by these Conventions.
- Zimbabwe has completed its assessment under the United Nations Convention Against corruption (UNCAC) 2nd cycle review on Chapter II (Preventive Measures) and Chapter V (Asset Recovery) where we hosted Reviewers from the Republic of Angola and Republic of Carbo Verde during a country visit.
- Prior to this, Zimbabwe had participated in the 1st cycle review mechanism that focused on Criminalization, Law Enforcement and International cooperation.

2.13 Commemorating the International Anti-Corruption Day

- Every year Zimbabwe joins the rest of the world in commemorating the International Anti-Corruption day which falls on 9 December.

2.14 Participation of Society

- In line with article 13 of UNCAC, Government has put in place policies and measures that allow for the participation of the public in policy matters and legislation reforms through the Parliamentary consultative meetings and access to institutions that combat corruption in Zimbabwe.
- Lead institutions in the fight against corruption have an open door policy to gather the input of the public on issues relating to corruption. The Zimbabwe Anti-Corruption Commission also has a Client Service Charter which gives the reporters the right to access information pertaining to the cases they have reported.
- Public education programmes have also been conducted as a strategy of raising awareness on corruption issues. Such public education programmes have been conducted in schools so as to create an anti-corruption culture from a tender age and embrace the “catch them young concept”.
- A television show specifically on anti-corruption issues is being broadcast on the national broadcasting television station, ZTV and it has amassed a total of more than 800 000 viewers. The television show is named **Combating Corruption** and brings together panellists from different sectors which include law enforcement agencies and civil society among others.
- Radio shows on anti-corruption issues are also being aired in a bid to spread fight against corruption.

- ZACC has a column, Corruption Watch in the Sunday Mail, one of the leading newspapers in Zimbabwe dedicated to raising awareness on anti-corruption issues.

2.15 Civil Society

- Zimbabwe has seen the importance of a coordinated fight against corruption through incorporating the various efforts of stakeholders in the fight against corruption including the civil society.
- ZACC signed a Memorandum of Understanding with Transparency International Zimbabwe on Cooperation in fighting corruption.
- The MoU paved way for cooperation between Transparency International and law enforcement agencies and other stakeholders in the anti-corruption value chain in several projects. Transparency International has also funded some anti-corruption workshops as a result of the MoU which has strengthened efforts between Government law enforcement agencies and civil society.

3.0 International Cooperation

- Zimbabwe is making great strides to ensure measures that guarantee maximum cooperation is given to States Parties during requests for extradition processes and the return of stolen assets.
- The Zimbabwe Anti-Corruption Commission has signed Memoranda of Understanding with other anti-corruption agencies in line with chapter IV and article 43 of the UNCAC.

3.2 Benchmark Visits

- The Zimbabwe Anti-Corruption Commission has undertaken benchmark visits to other anti-corruption agencies in other jurisdictions.
- The Zimbabwe Anti-Corruption Commission visited the Directorate on Commission and Economic Crime of Botswana, Prevention of Corruption Bureau of Tanzania and the Economic and Financial Crimes Commission of Nigeria.
- These bench mark visits paved way for the establishment of relations between the anti-corruption agencies and sharing of best practises in the fight against corruption.

3.3 International Capacity Building

- The Zimbabwe Anti-Corruption Commission has participated in several international capacity building programmes so as to equip their staff with relevant skills commensurate to best practises.

- The Zimbabwe Anti-Corruption Commission has participated in capacity building programmes hosted by ARINSA, StAR and Raoul Wallenberg Institute of Human Rights.

4.0 Challenges

4.1 Delayed Mutual Legal Assistance

Zimbabwe has requested for Mutual Legal Assistance from quite a number of countries. However, most countries are not responding to the mutual legal assistance requests and this is a major challenge in terms of asset recovery.

4.2 Limited Funding

- Zimbabwe also has a limited budget to fighting corruption owing to the economic strains the country is facing.
- Therefore, it has become difficult for law enforcement agencies to engage in a full anti-corruption drive. Government though has responded with capacitation of ZACC (vehicles, IT gadgets, furniture, buildings, recruitment of officers) which as seen staff compliment increase from 192 to 390.
- Limited funding towards NACS sub-committees to ensure that they are operationalized.

5. RECOMMENDATIONS TO GOVERNMENT

5.1 Enact legislation to protect whistle-blowers and adopt a comprehensive whistle blower framework

5.2 Facilitate the amendment of the Anti-corruption Act for ZACC to have prosecutorial powers

5.3 Enact legislation governing conflict of interest of civil servants

5.4 Implement the recommendations from the OAG reports

5.5 Ensure that corruption cases are expeditiously investigated and prosecuted

5.6 Provide the ZACC with adequate resources to fully discharge its mandate

5.7 Provide ZACC with technical support in the establishment of an Electronic Case Management System and a Forensic Laboratory so as to modernise its efforts in the fight against corruption.

5.8 Fund the National Anti-Corruption Strategy Sub-committees so as to operationalize them.